

August 26, 2008



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 12378
(NINETH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce by air of dry ice prepared in accordance with the International Civil Aviation Organization's (ICAO) Technical Instructions or the Hazardous Materials Regulations (HMR). This special permit applies only to the notification-to-pilot requirements of § 175.33 and provides no relief from the HMR other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.203(a), 172.301(c) in that marking the special permit number on shipping papers and packagings is waived, and § 175.33, in that the quantity for each package listed on the notification-to-pilot is waived, except as specified herein.
5. BASIS: This special permit is based on the application of the United Parcel Service dated January 2, 2008, submitted in accordance with § 107.107 and additional information dated July 21, 2008.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Dry ice	9	UN1845	III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is as required by the ICAO Technical Instructions except that when 49 CFR prescribes more stringent packaging requirements than the packagings authorized by the ICAO Technical Instructions, the packaging used must conform to the requirements in 49 CFR.

b. Without regard to the exceptions provided for in § 175.10, the grantee must inform flight crews of dry ice being transported in the following method:

Dry Ice, 9, UN1845, III or UN1845, Dry Ice, 9, III
(total amount of Dry ice (in kg or pounds)) being
transported in each compartment and on each flight.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at the grantee's corporate headquarters and be made available to a DOT representative upon request.

b. The marking requirements in §§ 172.203(a) and 172.301(c) are waived.

c. Persons under subcontract operating under exclusive use of the grantee are authorized to use this special permit.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.10. MODAL REQUIREMENTS: None, except as provided in the HMR.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- O All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- O Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- O Registration required by § 107.601 et. seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous

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materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: DL